

that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that “Interested parties” means, with respect to a structured settlement agreement, the payee, the payee’s attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee’s death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is “fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.” Section 10137(a). Payee seeks to transfer:

- 24 monthly life contingent payments of \$139.99 each, increasing annually by 4% beginning February 3, 2027 and ending January 3, 2029,
- 60 monthly life contingent payments of \$437.02 each, increasing annually by 4% beginning February 3, 2029 and ending January 3, 2034, and
- 108 monthly life contingent payments of \$2,212.53 each, increasing annually by 4% beginning February 3, 2034 and ending January 3, 2043.

In exchange, Payee will get \$52,651. Mr. Whipp is 48 years old and divorced. He has no minor children and is unemployed. He states in his declaration that he receives \$2,824.89 per month from his annuity, however Exhibit F shows that he presently receives \$3,500 per month. He does not have any court-ordered child support obligations. He has completed eight prior transactions transferring his annuity. He states that he is experiencing financial hardship. If approved, he will use the funds to pay fines that stem from a cultivation case and complete home repairs.

The Court intends to inquire of Mr. Whipp at the time of hearing regarding his understanding of the terms of the agreement in addition to the discrepancy in what he currently receives monthly from his annuity. The Court may deny or defer ruling on the petition if the Court believes that the payee does not fully understand the proposed transaction and that independent legal or financial advice should be obtained, pursuant to Insurance Code 10139.5(b)(14). Petitioner did not provide a proposed Order as required by Local Rule of Court 5.17(D). Petitioner is to prepare the Order. **An appearance by Mr. Whipp is necessary on today’s calendar.**

IN RE: JAIMEZ PARADA

CASE NUMBER: 26CV-0210313

Tentative Ruling on Petition for Change of Name: Petitioner Isaac Jaimez Parada seeks to change his name to Isaac Jaimez Parada. The change will make Jaimez Petitioner’s middle name instead of part of his last name. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: LABRASH

CASE NUMBER: 26CV-0210308

Tentative Ruling on Petition for Change of Name: Petitioner Melissa Sue Luce seeks to change her name to Melissa Sue LaBrash. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

LVNV FUNDING LLC VS. PEREDO

CASE NUMBER: 25CV-0208454

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 14, 2026 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement

as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both CRC 3.1380(c) and Local Rule of Court 3.04(A) require that a Mandatory Settlement Conference Statement be filed no later than five court days prior to the Mandatory Settlement Conference. The Mandatory Settlement Conference in this matter was to take place on May 18, 2026. The date was set at the time of filing as it was included in the Notice of All Purpose Assignment. Defendant had notice as the Notice of All Purpose Assignment was served with the Complaint and Summons. Neither party filed a written response to the Order to Show Cause. Without sufficient excuse for failing to timely file a Mandatory Settlement Conference Statement, monetary sanctions are imposed in the amount of \$250 against Plaintiff and counsel and \$250 against Defendant and counsel. The clerk is directed to issue separate Orders of Sanctions. The trial date of July 14, 2026 is confirmed.

MITCHELL, ET AL. VS. KNAPP

CASE NUMBER: 25CV-0208409

Tentative Ruling on Motion to Partially Reopen Expert Discovery: Defendant, Kandi Knapp, moves pursuant to CCP § 2024.050 to re-open discovery. This matter was set pursuant to a request for order shortening time. Plaintiffs' opposition was due on June 30, 2026, but was not served and filed until July 1, 2026. Despite Defendant's objection to the untimely filing, the Court in its discretion will consider the opposition.

Meet and Confer. CCP § 2024.050 requires a motion requesting to reopen discovery be accompanied by a meet and confer declaration. The Declaration of Courtney Wert indicates compliance with this requirement.

Merits. CCP § 2024.050(a) provides a court with discretion to grant leave to reopen discovery after a new trial date has been set. In exercising its discretion to grant or deny such a motion the Court should consider: 1) the necessity and reason for the discovery; 2) the diligence or lack of diligence in seeking the discovery or the hearing on the discovery motion; 3) any likelihood that permitting the discovery will prevent the case from going to trial; and 4) the length of the time elapsed between any date previously set, and the date present set, for the trial of the action. CCP § 2024.050(b).

This matter arises from a car accident which resulted in the death of the decedent. The parties have stipulated to liability and the only issue remaining is the determination of damages. Among other relief, Plaintiffs are suing for future wage loss, loss of future earning capacity, and non-economic damages for loss of love, companionship, care, comfort, and guidance. Defendant states that deposing the decedent's healthcare providers is necessary to determining the decedent's life expectancy and thus Plaintiffs' damages.

During discovery, Plaintiffs denied having knowledge about where the decedent received medical treatment prior to the incident. Defendant discovered that decedent was treated at Shasta Regional Medical Center ("SRMC") and Shasta Community Health through the review of Medi-Cal records received in March/April 2026. Defendant subsequently subpoenaed those records. Plaintiffs opposed the subpoenas and the parties entered a first look agreement on April 28, 2026. Defendant promptly reviewed the records upon receipt from Plaintiffs on June 12, 2026. While Defendant worked diligently to obtain the records from SRMC when it was discovered that the decedent was a patient there, it is unclear when the Medi-Cal records were requested and why they were not sought earlier during discovery. Defendant has not disclosed how many healthcare providers she seeks to depose or how the length of time needed to continue discovery related to these newly obtained records.

At the time this motion was set on a time shortened basis, trial was set to commence on July 7, 2026. When the order shortening time for this motion was heard, the Court alerted counsel that it was unlikely that the trial would proceed as scheduled due to the fact that the Court was engaged in another jury trial.

The Court remains engaged in the aforementioned jury trial, so the July 7, 2026, trial date has been vacated. In light of the fact that there is currently not a trial date set, permitting the additional requested discovery will not prevent the case from going to trial. Additionally, the Court finds the requested discovery is relevant to an